



Department of Defense
Defense Health Agency
Performance Work Statement

Healthcare Compliance Training (HCT) Content

DHA/J-7 Education and Training Directorate

Medical Modernization and Simulation Division

Solicitation Number:
Version: 1
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PART 1

1.0 GENERAL INFORMATION

1.1 This is a non-personal services contract to provide Healthcare Compliance Training (HCT) Content.

1.2 Description of services/introduction: The Contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform provide access to the HCT as defined in this Performance Work Statement (PWS) except for those items specified as Government furnished property and services. The Contractor shall perform to the standards in this PWS.

1.3 Background: The mission of the military healthcare system (MHS) is to ensure the nation has available at all times a healthy military force supported by a combat ready healthcare system. Healthcare services for eligible MHS beneficiaries are provided at Medical Treatment Facilities and associated Dental Treatment Facilities (MTFs) located on or near military installations or posts. The MTF may be a Medical Center, Hospital, or Clinic . Clinics are outpatient facilities offering primary care or simple specialty care (routine exams, tests, treatments). The Clinic may be a stand-alone site or a satellite of a larger Medical Center, Hospital, or Clinic.

1.3.1. Defense Health Agency (DHA) MTFs, physicians, nurses, and others providing medical services require Continuing Medical Education (CE/CME) to meet their medical missions and medical readiness training requirements. The DHA can send only a small portion of its workforce to formal training programs each year due to resource constraints. Staying abreast of the latest changes in treatment modalities and techniques not only provides a healthcare environment that keeps the patients healthier, but it also helps mitigate risk inherent in the medical profession.

1.3.2. A distributed learning medical education system enables a much larger percentage of the DHA MTF workforce to receive technical and professional training on a regular and standardized basis. The DHA requires training in the following areas (but not limited to): The Joint Commission (TJC), Occupational Safety and Health Administration (OSHA), Center of Disease Control (CDC), CE/CME professional organizations, and DHA MTF-specific training for healthcare personnel using distributed learning (DL) delivery methods.

1.4 Objectives: Provide access to the cloud/web-based online learning to personnel assigned to the DHA MTFs supporting mission of medical treatment facility (MTF) operations.

- Provide access courses meeting all mandatory training requirements recommended by The Joint Commission (TJC), Occupational Safety and Health Administration (OSHA), and/or other medical/health regulatory and accrediting bodies, site specific and specialty portals for hosting government owned/created content, accreditation of government developed content, and the associated support services.
- Provide a minimum of 500 Continuing Education (CE)/Continuing Medical Education (CME) courses.

1.5 Scope: DHA E&T provides enterprise-wide military MTF training completion guidance to fulfill annual/triennial requirements of The Joint Commission (TJC) and/or Occupational Safety and Health Administration (OSHA) requirements for personnel assigned to the DHA military MTFs. The Contractor will provide the non-personal services 24/7/365 cloud/web-based platform to provide a continuously updated common curriculum for recurring healthcare compliance (regulatory and accreditation) and other medical specific mandatory training, and CME/CE and programs on a cloud/web-based system. Eligible personnel shall include all DoD personnel assigned to military MTF sites regardless of Service affiliation, deployment status, or employment status. These services shall support a minimum of 225,000 personnel at DHA's 54 military hospitals and 377 military medical clinics, including all active duty armed forces personnel (Army, Air Force, Marines, Navy, and Coast Guard), DoD civilians, Veteran Health Administration (VHA) civilians, contractors, students, volunteers, and National Guard and Reserve personnel serving on Title 10 orders affiliated or employed with the sites on full-time, part-time, student, or volunteer status. This shall also include all active duty personnel holding medical occupations or skills [Military Occupational Specialty (MOS); Air Force Specialty Code (AFSC); Navy Enlisted Classification (NEC); Area of Concentration (AOC); Additional Skill Identifier (ASI)].

1.5.1. The Contractor will provide all services and labor required to accomplish the performance of DL and on-line CE/CME as specified, in strict accordance with all terms, conditions, general and special provisions, specifications, attachments, etc., contained herein or incorporated by reference. Performance will be according to the requirements contained in this performance-based work statement (PWS). Courseware and system efficiency will be monitored by the DHA Education and Training (J7) LMS Management Branch.

1.5.2. The desired online resource will provide a minimum of 500 accredited medical training courses to meet established standards, principles, ethics of the profession, applicable professional specialty organizations, regulatory and mandatory requirements set forth by and in accordance with TJC, OSHA, and CDC standards, applicable Department of Defense (DoD) regulations, directives and policies and DHA MTF-specific policies, procedures, and job descriptions. The Contractor will also be held accountable for compliance to the standards listed in the current version of the Comprehensive Accreditation Manual for Hospitals (CAMH) and the Comprehensive Accreditation Manual for Ambulatory Care (CAMAC). The desired system will also offer a CE/CME program that will provide online education for but not limited to the following areas: Dental and Dental Assisting, Administration, Medical Records, Physicians and Physician Assistants, Registered and Licensed/Practical Nurses, Nurse Practitioners, Clinical Nurse Specialists, Pharmacy and Pharmacy Technicians, Physical Therapy, National Registry of Emergency Medical Technicians, Paramedics, and First Responders, Social Workers, Housekeeping, Facilities Management and Maintenance, Patient and Employee Safety, Laboratory, Radiology, Dietary, Occupational Therapy, Respiratory Therapy, Medical Technologists, and Nursing Assistants. The vendor's curriculum must meet civilian professional accreditation requirements to ensure the continuing educational requirements needed for licensure and certification by DHA personnel are valid. The desired cloud/web-based program must have the ability to interface into existing government human resources systems and other

information technology systems with an automated feed of learner experience and course completion data.

1.6 Period of Performance (PoP):

Base Year: Date of award through 12 months of performance (including 60-day phase-in period)

Option Year 1: Expiration of Base Year through 12 months of performance

Option Year 2: Expiration of Option Year 1 through 12 months of performance

Option Year 3: Expiration of Option Year 2 through 12 months of performance

Option Year 4: Expiration of Option Year 3 through 12 months of performance

6-Month Extension: Expiration of Option Year 1 through 6 months of performance

1.6.1 Transition: Transition-in/transition-out period

1.6.1.1 Transition-in period: Full performance start date is 01 February 2027. Transition-in period is defined as the period between the award date and performance start date. During the transition-in period, the contractor shall prepare to meet all contract requirements and ensure incoming personnel are functionally trained and qualified on the full performance start date except cybersecurity requirements, which must be fully adhered during transition and full performance periods. The remaining incoming personnel shall be trained and qualified within 60 days. A draft Transition-in plan shall be submitted with the contractors proposal and a final within 5 days after contract award (See Part 7, Technical Exhibit 1 – CDRL A001)

1.6.1.2 Transition-out period: The transition-out plan shall facilitate the accomplishment of a seamless transition from the incumbent to an incoming Contractor/Government personnel at the expiration of the contract. A draft Transition-Out plan shall be submitted to the COR within 6 months and a final within 60 days prior to close of contract or unexercised Option (CDRL A002). See Part 7, Technical Exhibit 1. See Part 7, Technical Exhibit 1.

1.6.1.2.1 The Contractor shall comply with transition-out requirements of the DHA for Contractors who have been issued a CAC or who generate “records”, as defined by DoD (records manual), including DoD-directed disposition of records, and others displayed on the In/Out (I/O) Processing Portal.

1.7 Administrative Specifications:

1.7.1 Place of performance: The work shall be performed at a remote location as this is a contract for Service. The following holidays and hours of operation apply to help desk personnel.

1.7.2 Recognized Federal holidays: The Contractor is required to perform services on holidays. Hours of operation are outlined in PWS 1.7.3.

New Year’s Day

Martin Luther King Jr.’s Birthday

President’s Day

Memorial Day

Labor Day

Columbus Day

Veteran’s Day

Thanksgiving Day

Juneteenth Day
Independence Day

Christmas Day

1.7.3 Hours of Operation: The Contractor will provide LMS Operations Customer Service and Help Desk support to site administrators and employees to resolve technical problems.

1.7.3.1. LMS Operations Customer Service:

- Available on a 24/7/365 basis, accessible.
- Support the courses, provide technical assistance, and resolve problems for employees, site POCs, and DHA MTF administrators.
- Customer Service will be accessible through a Contractor provided toll-free number and email.

1.7.3.1 Help Desk:

- Monday thru Friday (Excluding Holidays). 7:30 a.m. - 5:30 p.m. Central Time (CT)
 - Answering Service (Live person) answers phone, records the problem(s)/issue(s), and contacts person on call who then provides response/resolution to Customer within thirty (30) minutes (excluding federal holidays).
- Federal Holidays. 5:30 p.m. CT (last previous business day) – 7:30 a.m. CT (first business day following Federal Holiday) –
 - Answering Service (Live person) answers phone, records the problem(s)/issue(s), and contacts person on call who then provides response/resolution to Customer no later than 1500 CT on the next business day.

1.7.4 Emergency Services:. Not applicable.

1.8 **Contractor travel:** Not applicable.

1.9 **Other Direct Costs (ODC):** Not applicable.

1.10 **Quality:**

1.10.1 Quality Control (QC): The Contractor shall develop and maintain an effective QC program to ensure services are performed in accordance with this PWS. The Contractor shall develop and implement procedures to identify, prevent, and ensure nonrecurrence of defective services. The Contractor's QC program is the means by which the work complies with stated requirements. The Contractor shall provide and maintain a Quality Control Plan (QCP) which ensures the requirements in this PWS are met. The QCP will be considered acceptable and approved unless the Contractor is notified by the Contracting Officer (CO) prior to award. A draft QCP shall be included in the technical quote for evaluation and acceptance. A comprehensive written QCP shall be submitted to the CO and COR within thirty (30) days after contract award and within five (5) working days when changes are made thereafter. After acceptance of the Quality Control Plan (QCP), the Contractor shall receive the CO's acceptance in writing of any proposed change to his QC system. See Part 7, Technical Exhibit 1 - CDRL A003.

1.10.2 Quality assurance (QA): The Government will evaluate the Contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan (QASP). This plan provides a systematic method for the Government to evaluate performance and to ensure that the Contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rate(s).

1.11 Contractor Personnel:

1.11.1 CAC requirements: For all Contractors who will work in Government facilities, the Facilities Security Officer (FSO)/Company's Security point of contact (POC) will provide the Government all the required information per the DHA CAC request process current version 2.1, January 2018, or more recent when updated. See process attached at Part 7 Section 7.1.1 of the PWS. A CAC is the standard identification for eligible DoD Contractor personnel.

1.11.1.1 The Contractor shall return all CACs to the COR upon the departure of the Contractor(s).

1.11.2 Contractor onboarding and training. The Contractor shall complete all requirements, training, and forms as prescribed in the following requirements:

1.11.2.1 The DHA's "Onboarding Checklist for Contractor Employees" is located at the DHA Onboarding and Offboarding Portal at <https://info.health.mil/cos/admin/hr/IO/SitePages/Home.aspx>

1.11.2.2 The DHA's Contractor training instructions embedded at Part 7 Section 7.1.2.

1.11.2.3 The Contractor shall comply with onboarding requirements of the DHA for Contractors needing to be issued CAC identification, including DoD- and DHA-directed training and forms submission, prior to network access, as displayed in the In/Out-Processing Portal at: <https://info.health.mil/cos/admin/hr/IO/SitePages/home.aspx> (note: Public Key Infrastructure (PKI)-restricted, printed versions available).

1.11.2.4 The DHA's new employee handbook at Part 7 Section 7.1.4.

1.12 **Key personnel (Contractor):** The Contractor shall provide a Contract Manager who shall be responsible for the performance of the work. The name of this person and an alternate who shall act for the Contractor when the manager is absent shall be designated in writing to the CO. The Contract Manager or alternate shall have full authority to act for the Contractor on all contract matters relating to daily operation of this contract. The Contract Manager or alternate shall be available between 8:00 a.m. to 4:30 p.m. EST, Monday thru Friday except Federal holidays or when the Government facility is closed for administrative reasons. Qualifications for all key personnel are listed below:

1.12.1 Contract Manager and Alternate: The Contract Manager and Alternate must have 12 months experience in project management, and possess a high level of understanding of DoD medical training requirements and expectations.

1.13 **Data rights:** Reserved.

1.14 **Reporting:**

1.14.1 Contractor Manpower Reporting (CMR): RESERVED.

1.14.2 Non-Disclosure Agreement (NDA): All Contractor personnel who will obtain access to proprietary, classified, or confidential information or any information release of which is protected or governed by law or regulation associated with DHA acquisitions shall be required to complete and sign a DHA Contractor NDA (DHA Form 49) prior to beginning work on the subject contract. The Contractor shall execute an NDA on behalf of the company and shall ensure that all staff assigned to, including all subcontractors and consultants, or other personnel performing on contract/Task order execute an NDA protecting the procurement sensitive information of the Government and the proprietary information of other Contractors. The NDA shall be executed not later than first day of employment and to be renewed upon exercising a contract Option period. Assignment of staff who has not executed this statement or failure to adhere to this statement shall constitute default on the part of the Contractor. The Contractor shall maintain originally signed NDAs of individual employees and provide copy to the COR. See Part 7, Technical Exhibit 1 - CDRL A004.

1.14.3 Government's COR: The COR monitors all technical aspects of the contract and assists in contract administration. The COR is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the contract; perform inspections necessary in connection with contract performance; maintain written and oral communications with the contractor concerning technical aspects of the contract; monitor Contractor's performance and notifies both the CO and Contractor of any deficiencies; coordinate availability of Government furnished property; and provide site entry of Contractor personnel. A letter of designation issued to the COR, a copy of which is sent to the Contractor, states the responsibilities and limitations of the COR, especially with regard to changes in cost or price, estimates or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting contract.

1.14.4 Post award conference/periodic progress meetings: The Contractor agrees to attend any post award conference convened by the contracting activity or contract administration office in accordance with FAR Subpart 42.5. The CO, COR, and other Government personnel, as appropriate, may meet periodically with the Contractor to review the Contractor's performance. At these meetings the CO will apprise the Contractor of how the Government views the Contractor's performance, and the Contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the Government.

1.15 **Contractor Identification:**

1.15.1 Contractor personnel performing services in a Contractor capacity in a Government facility are required to possess and wear an identification badge that displays his or her name and the name of their company. All Contractor personnel shall identify themselves as Contractor support personnel in all forms of communication with all entities with whom DHA/Deputy Assistant Director for Acquisition (DAD-A)/Head of the Contracting Activity (HCA) has business dealings. The Contractor shall: Answer all telephone calls and have a personalized voice message with an introductory statement that includes the fact that the person is Contractor support personnel. Ensure all those with whom the person interacts in any face-to-face dealings while supporting the DAD-A understands that the person is contractor support personnel. Include a title block in all emails that states the fact that the person is Contractor support personnel. Ensure all those with whom the person interacts in any face-to-face dealings while supporting DHA/DAD-A/HCA understands that the person is Contractor support personnel.

1.15.2 Contractor personnel will be required to attend meetings or otherwise communicate with Government and/or other contract representatives to meet the requirements of this order. Contractor personnel shall make their Contractor status known during introductions.

1.15.3 Contractor personnel, while performing in a Contractor capacity, are prohibited from using their retired or reserve component military rank or title in any written or verbal communications associated with the contracts in which they provide services.

1.16 Contractor Access to Health Affairs (HA)/DHA Network(s)

1.16.1 FSO/Company's Security POC shall notify the DHA Personnel Security Office after being awarded a contract that requires access to a DoD system (If applicable, if not delete 1.16.1 and 1.16.2 and replace to 1.16 Reserved). Contractor personnel requiring access to the DHA networks for performance of their tasks require a background investigation and the security awareness training. The Contractor shall be prepared for this process as it could take two (2) or more weeks. The FSO/Security POC shall submit a Standard Form (SF) 85/86 to DHA's Personnel Security Office for a background investigation.

1.16.2 Company's FSO/Security POC must notify the Personnel Security Office when the Contractor has submitted the SF-85/86. The FSO/Security POC, or the COR must notify the DHA Personnel Security Office in writing of a Contractor's termination from the contract, including the termination date.

1.17 Personnel Security:

1.17.1 The Contractor shall comply with DoD 8570.01-M, "Information Assurance Workforce Improvement Program, CH4" November 10, 2015 as amended; 8500.01, "Cybersecurity", dated March 14, 2014; DoD Manual (DoDM) 6025.18, "Implementation of the Health Insurance Portability and Accountability Act (HIPAA) Privacy Rule Compliance in DoD Health Care Programs" dated March 3, 2019, Department of Defense Instruction (DoDI) 6025.18 "HIPAA Privacy Rule Compliance in DoD Health Care Programs", dated March 13, 2019; and DoDM 5200.02 "Procedures for the DoD Personnel Security Program (PSP)," incorporation change 3, effective September 24, 2020. Contractor responsibilities for ensuring personnel security include, but are not limited to, meeting the following requirements:

1.17.1.1 Follow the DHA Personnel Security Office guidelines for submittal of security clearances. Contact the DHA Personnel Security Office for guidance on the appropriate background investigation required for personnel on the contract. The DHA Personnel Security Office can be reached at (703) 275-6038.

1.17.1.2 Initiate, maintain, and document personnel security investigations appropriate to the individual's responsibilities and required access to Controlled Unclassified Information (CUI).

1.17.1.3 DHA Personnel Security Office does not deny any access to any automated information system (AIS), network, or Controlled Unclassified Information (CUI). If a Contractor receives an unfavorable background investigation, the request for access will be sent back to the FSO for further action. Any unfavorable adjudication will result in DHA Personnel Security Office not signing off on any access request.

PART 2

2.0 DEFINITIONS, ACRONYMS, AND APPLICABLE PUBLICATIONS/INSTRUCTIONS

2.1 Definitions:

2.1.1 Category D: Information Technology (IT) and Telecommunications Services (called D-Services)

2.1.2 Category R: Support (Professional/Administrative/Management) Services (called R-Services)

2.1.3 Contracting Officer (CO): A person with the authority to enter into, administer, and/or terminate contracts and make related determinations and findings.

2.1.4 Contracting Officer's Representative (COR): An individual, including a Contracting Officer's technical representative (COTR), designated and authorized in writing by the CO to perform specific technical or administrative functions. This individual does NOT have authority to change the terms and conditions of the contract.

2.1.5 Nonpersonal services contract: A contract under which the personnel rendering the services are not subject, either by the contract's terms or by the manner of its administration, to the supervision and control usually prevailing in relationships between the Government and its employees.

2.1.6 Quality Assurance Surveillance Plan (QASP): An organized written document specifying the surveillance methodology to be used for surveillance of Contractor performance. The Government may either prepare the QASP or require the offerors to submit a proposed quality assurance surveillance plan for the Government's consideration in development of the Government's plan.

2.2 Acronyms:

24/7/365	24 hours a day, 7 days a week, 365 days a year
ACCME	Accreditation Council for Continuing Medical Education
AFSC	Air Force Specialty Code
AIS	Automated Information System
APL	Approved Products List
AQL	Acceptable Quality Level
ATO	Authority to Operate
B2B	Business-2-Business
CAC	Common Access Card
CAMAC	Comprehensive Accreditation Manual for Ambulatory Care
CAMH	Comprehensive Accreditation Manual for Hospital
CDC	Center for Disease Control

CDI	Covered Defense Information
CE	Computer Environment
CDRL	Contract Data Requirement List
CE	Continuing Education
CIO	Chief Information Officer
CME	Continuing Medical Education
CMMC	Cybersecurity Maturity Model Certification
CMR	Contractor Manpower Reporting
CO	Contracting Officer(s)
CONUS	Continental United States (excludes Alaska and Hawaii)
COR	Contracting Officer Representative
COTR	Contracting Officer's Technical Representative
CSP	Cloud Service Provider
CST	Central Standard Time
CUI	Controlled Unclassified Information
DAD-A	Deputy Assistant Director for Acquisition
DC3	DoD Cyber Crime Center
DD Form 254	Department of Defense Contract Security Requirement List (if applicable)
DFARS	Defense Federal Acquisition Regulation Supplement
DHA	Defense Health Agency
DISA	Defense Information System Agency
DL	Distance Learning
DMHRSi	Defense Medical Human Resources System Internet
DoD	Department of Defense
DoDD	Department of Defense Directive
DoDI	Department of Defense Instruction
DSAs	Data Sharing Agreements
DSAA	Data Sharing Agreement Application
DMZ	Demilitarized Zone
DoDM	Department of Defense Manual
DPCLO	DHA Privacy and Civil Liberties Office
DUA	Data Use Agreement
EDIPI	Electronic Data Interchange Personal Identifier
eMSM	Enhanced Multi-Service Markets
FAR	Federal Acquisition Regulation
FCI	Federal Contract Information
FedRAMP	Federal Risk Authorization and Management Program
FISMA	Federal Information Security Modernization Act
FRCS	Facility Related Control Systems
FSO	Facilities Security Officer
HA	Health Affairs
HIPAA	Health Insurance Portability and Accountability Act
HCA	Head of the Contracting Activity
HCT	Healthcare Compliance Training
HIT	Health Information Technology
IGCE	Independent Government Cost Estimate

IA	Information Assurance
I/O	In/Out Processing Portal
IA	Information Assurance
ILT	Instructor Led Training
IS	Information System
ISP	Internet Service Provider
IT	Information Technology
LP	Lesson Plan
MedCOI	Medical Community of Interest
MHS	Military Health System
MOS	Military Occupational Specialty
MTFs	Military Treatment Facilities
NCR	National Capitol Region
NDA	Non-Disclosure Agreement
NEC	Navy Enlisted Classification
NIAP	National Information Assurance Partnership
NIST	National Institute of Standards and Technology
OCONUS	Outside Continental United States (includes Alaska and Hawaii)
ODC	Other Direct Costs
OPM	Office of Personal Management
OSD	Office of the Secretary of Defense
OSHA	Occupational Safety and Health Administration
PGI	Procedures, Guidance and Information
PHI	Protected Health Information
PII	Personally Identifiable Information
PK	Public Key
PKI	Public Key Infrastructure
POC	Point of Contact
PMO	Program Management Office
PoP	Period of Performance
PP	Personal Property
PRS	Performance Requirements Summary
PSP	Personnel Security Program
PWS	Performance Work Statement
QA	Quality Assurance
QAP	Quality Assurance Program
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Plan
RFP	Request for Proposal
RFQ	Request for Quotation
RMF	Risk Management Framework
SPRS	Supplier Performance Risk System
SRG	Security Requirements Guides
TJC	The Joint Commission (on Accreditation of Healthcare Organizations)
US	United States

VA	Veteran Administration
VPN	Virtual Private Network
WBT	Web Based Training
XML	Extensible Markup Language

2.3 Applicable Publications, DHA Administrative Instructions (AI), etc.

Not applicable.

PART 3
3.0 GOVERNMENT FURNISHED PROPERTY, EQUIPMENT, AND SERVICES

The Requiring Activity Authority has assessed the need for Government Furnished Property, Equipment, and Services and determined:

3.1 Services: The Government:

☒ Will **NOT** provide Government Furnished Services in support of this contract/task order. As a result, this paragraph is Not Applicable.

☐ **WILL** provide Government Furnished Services required in support of this contract/task orders. These Services are described below:

3.2 Facilities: The Government:

☒ Will **NOT** provide Facilities in support of this contract/task order. As a result, this paragraph is Not Applicable.

☐ **WILL** provide Facilities in support of this contract/task orders. The Government provided Facilities are described below:

3.3 Utilities: The Government:

☒ Will **NOT** provide Utilities in support of this contract/task order. As a result, this paragraph is Not Applicable.

☐ **WILL** provide Utilities in support of this contract/task orders. The Government provided Utilities are described below:

3.4 Equipment: The Government:

☒ Will **NOT** provide Equipment in support of this contract/task order. As a result, this paragraph is Not Applicable.

☐ **WILL** provide Equipment in support of this contract/task orders. The Government provided Equipment is described below:

3.5 Materials: The Government:

☐ Will **NOT** provide Materials in support of this contract/task order. As a result, this paragraph is Not Applicable.

☒ **IS** providing Materials in support of this contract/task orders. The Government-provided Materials are described below:

- Common Access Cards (CAC) to Contractor personnel (maximum of 3) to allow access to file repositories.

PART 4
4.0 CONTRACTOR FURNISHED ITEMS AND SERVICES

4.1 Services: The Contractor:

☒ Will **NOT** provide Contractor Furnished Services in support of this contract/task order. As a result, this paragraph is Not Applicable.

☐ **WILL** provide Contractor Furnished Services required in support of this contract/task orders. These Services are described below: provide

4.2 General: The Contractor shall furnish all supplies, equipment, facilities and services required to perform work listed under Section 5 of this PWS.

4.3 Secret Facility Clearance: Not applicable.

4.4 Materials: The Contractor shall furnish all materials required to meet the requirements under the PWS.

4.5 Equipment: The Contractor shall furnish all IT Equipment required to operate the LMS.

4.6 Facilities: The Contractor shall provide the facilities and utilities required to meet the requirements under this PWS.

PART 5

5.0 SPECIFIC TASKS

5. Specific Tasks

- The contractor shall produce, host, deliver, customize, and update training modulus to fulfill annual/triennial requirements of The Joint Commission (TJC), and/or Occupational Safety and Health Administration (OSHA) requirements for personnel assigned to the DHA Military Medical Treatment Facilities (MTFs) and Dental Treatment Facilities (DTFs). There are approximately 18K Service-specific training modules hosted on our current Learning Management System (LMS).
- The contractor shall create user profiles, group users by medical profession indicated in a user profile, group courseware into training plans, assign training plans to grouped medical professionals, track training completions, and perform compliance reporting by medical profession, training plan, location, and/or course.
 - Courses must supply certificates specific to the certification agency to the course's accreditation and as listed in the user's user profile. Regularly updated courseware may also be supplied via SCORM packages to be hosted on the DHA enterprise LMS.
- The contractor shall apply for/submit MTF/DTF personnel CE/CME documentation to the various certifying boards in order to obtain/maintain the appropriate certifications.
- The contractor shall apply for/submit documentation for obtaining/maintaining accreditation for the MTF/DTF facilities.

5.1. Course Requirements:

- 5.1.1. Vendor shall provide LMS for CE/CME, mandatory regulatory, certification, accreditation, safety, and specialty specific training. The primary method of delivery will be cloud/web-based: however, ILT LPs will be provided by the Contractor when requested by the COR/Site Coordinator.
- 5.1.2. The Contractor's programs will include additional courses in the following disciplines and categories of non-CE/CME awarding training: OSHA, CDC, TJC, applicable Department of Defense (DOD) regulations, directives and policies, and any DHA MTF-specific policies and procedures, job descriptions, support staff, and safety.
- 5.1.3. Accreditation Requirements:
 - The number and content coverage of offerings will be adequate to meet accreditation requirements and standards. All courses will address which

standards, regulations, or regulatory and mandatory guidance is being addressed and/or met with a course. This data will be searchable to allow listing of courses that meet a certain standard or regulation. The Contractor will provide a listing of courses with the matching standards and regulations or regulatory guidance on a quarterly basis to the COR. See Part 7, Technical Exhibit 1 – CDRL A005

- Contractor's courses shall comply with the standards listed in the current version of the Comprehensive Accreditation Manual for Hospitals (CAMH) and the Comprehensive Accreditation Manual for Ambulatory Care (CAMAC).
- The Contractor will ensure that courses provided to CE/CME accreditation agencies, meet and pass all certification and accreditation requirements. The Contractor will ensure no negative reports from accreditation agencies indicating noncompliance on CE/CME courses.
- Courses must supply certificates specific to the certification agency to the course's accreditation and as listed in the user's user profile. Regularly updated courseware may also be supplied via SCORM packages to be hosted on the DHA enterprise LMS. See Part 7, Exhibit 1 – CDRL A006

5.1.4. Provide CE/CME, and military medical cloud/web-based courses (WBT) and instructor led training (ILT) lesson plans (LPs) for regulatory and safety training.

5.1.5. Contractor will provide fully accredited distance learning CE/CME Programming on the basis outlined herein.

- All program courses will receive the accredited status by the appropriate accrediting agencies as cited below. The Contractor will provide CE/CME as an Accreditation Council for Continuing Medical Education (ACCME) accredited provider for all physician CE/CMEs that are offered under this PWS. CE/CME courses for healthcare professionals other than physicians will be current and accredited by the appropriate accrediting agencies for that profession. Examples of DHA recognized agencies include, but are not limited to, those specified in attached Certifying Boards, PWS 7.2.2.
- The CE/CME program will include courseware for a wide variety of healthcare disciplines. Healthcare professionals targeted for this training include, but are not limited to: Dental and Dental Assisting, Administration, Medical Records, Physicians and Physician Assistants, Registered and Licensed/Practical Nurses, Nurse Practitioners, Clinical Nurse Specialists, Pharmacy and Pharmacy Technicians, Physical Therapy, National Registry of Emergency Medical Technicians, Paramedics, and First Responders, Social Workers, Housekeeping, Facilities Management and Maintenance, Patient and Employee Safety, Laboratory, Radiology, Dietary, Occupational Therapy, Respiratory Therapy, Medical Technologists, and Nursing Assistants. Course offerings will include as a minimum, CE/CME, mandatory regulatory and safety training.

- Each of the program courses will be accredited for a minimum of one (1) full contact hour of CE/CME within that discipline by nationally recognized accreditation agencies. Each course will be developed with a multidisciplinary approach in an Educational Design, minimum Level One format.
 - The CE/CME programming will be updated with at least 15 new accredited programs every month.
- 5.1.6. All DL content content will include module tests with reportable results that examine the learner's knowledge of objectives. Module tests will be administered after completing a module, or after each objective within a module. Module tests and their administration will meet the requirements of the accrediting agencies. The minimum passing score will be 80%.
- 5.1.7. Contractor will advise the DHA as additional accreditation opportunities become available.
- 5.1.8. The Government may provide up to 10 hours of new DHA healthcare training requirements for development into DL courseware per year to be hosted on the Contractor's website.
- Converting and Hosting DHA Courseware: The Government will request in writing, with sixty (60)-days notice, the requirement for DHA courseware conversion, accreditation, and hosting.
 - The Government reserves the right to provide the content for the DHA courses. The Contractor will convert and/or reformat or code, and host up to ten (10) DHA courseware programs per contract year.
 - DHA courseware and source code will be provided to the COR upon completion. See Part 7, Technical Exhibit 1 – CDRL A007
 - The Contractor will list all courses independently and will allow DHA MTFs to add their site-specific training without modifying the core training.
 - The Contractor will review all TJC standards and develop appropriate DL courses to assist Government customer in meeting those standards. Each course will reflect which standard is met. The Contractor will be responsible for maintaining data current in all courses in accordance with TJC standard updates.
 - The Contractor will ensure that all courseware is free from language, grammar, content, and playability errors.
- 5.1.9. For Instructor Led Training, the Contractor will provide registration support, printable instructor lesson plans/instructor guides, and group discussion exams to support face-to-face/live event training for regulatory and safety training to meet

accreditation agency requirements for existing Contractor provided courseware, within 15 business days of request. See Part 7, Technical Exhibit 1 – CDRL A008

- 5.1.10. The Contractor will provide a program syllabus and/or appropriate training documentation as required by the Government outlining the learning objectives and course content summary. Each individual program that contains ILT LPs will have a label that lists the title, discipline, program number, and date on which accreditation expires. See Part 7, Technical Exhibit 1 – CDRL A009
- 5.1.11. The system must provide for locally developed new and existing course upload capability in the following formats (PowerPoint, Word, PDF, video, etc.) to provide individual MTFs more flexibility in customizing courses.
- 5.1.12. All DHA courseware, hosted and/or developed by the Contractor and site-specific courseware hosted by the Contractor under this PWS is considered Government property and will be returned to the Government COR ten (10) business days prior to the end of the period of performance.
- 5.1.13. The contractor shall apply for/submit MTF/DTF personnel CE/CME documentation to the various certifying boards in order to obtain/maintain the appropriate certifications. See Part 7, Technical Exhibit 1 – CDRL A0010
- 5.1.14. The contractor shall apply for/submit documentation for obtaining/maintaining accreditation for the MTF/DTF facilities. See Part 7, Technical Exhibit 1 – CDRL A011

5.2. User Access Requirements:

- 5.2.1. Provide a learning management system to effectively manage participants, communicate with participants, create/edit groups, establish/update customizable user profiles, assign training, generate reports, create online courses, track attendance, and manage classroom-based training.
- 5.2.2. Contractor will maintain on-line 24/7/365 connections that allow DHA personnel to complete CE/CME courses that are in compliance with regulatory and mandatory credentialing agents listed in this PWS.
- 5.2.3. Vendor shall provide an enterprise-wide license and an annual by-user license for those Government units whose personnel are not dedicated to a single facility and other DHA personnel not assigned to MTFs but support the DHA mission.
- 5.2.4. The Contractor will provide user registration and registration support. The Contractor will create and maintain a separate webpage for all DHA related courseware. This registration will include the following:
 - Employee registration will be through the internet with confirmation via email notice of successful registration to the user.

- User information will be captured, accessible, and edited in a user profile that allows for immediate data updates when a user moves to another facility or changes job roles. The user profile will contain the following user data on each registrant: identification number (EDIPI/DoD ID), last name, first name, rank/GS grade/employment category, email address, military specialty identifier, duty title, discipline, unit/site/organization, and any customized field that was previously added to meet unique requirements of the users targeted under this contract. Drop-down boxes will be used as much as possible to ensure uniform data capture. Requests to add, modify, or delete user profile data fields will only be provided via the DHA LMS Manager.
- The system will create and issue access to the system within one (1) minute.

5.3. System Requirements:

- 5.3.1. Contractor will not have the system down for maintenance more than a total of 48 hours in any consecutive three (3) month period.
- 5.3.2. The Contractor will provide users the capability to input and safeguard user-generated passwords, user IDs, and data security. The Contractor will use industry standard 256-bit encrypted security and password protection of all military data and will adjust to the current industry standard encryption security and password protection, if deemed required to maintain operations with the DOD.
- 5.3.3. Unless unforeseen system failure occurs, the Contractor will provide DHA MTFs a 48-hour minimum notice of any required or scheduled system maintenance.
- 5.3.4. The Contractor will provide the capability for participants to complete post-tests and receive completion certificates on-line through the system. The Contractor's on-line testing system will provide instant test results so the participant receives immediate information and feedback as to whether they have passed or failed a program.
- 5.3.5. Hosting Site-Specific Content: The Contractor will host site-specific courseware within ten (10) business days of receipt. Site-specific courseware includes specific MTF and military unit mandatory annual sustainment training programs and orientation briefings as well as other required courseware and testing materials. These programs are specific to the DHA MTF developed courseware and may have limited access only to those personnel assigned to the specific DHA MTF. The Contractor will track employee completion for credentialing purposes. Each facility will be able to evaluate and track usage by name on their required courseware and/or presentations (Examples: Emergency Management Plans specific to a facility; Code of Conduct).
- 5.3.6. Section 508 Compliance:
 - All electronic and information technology (EIT) procured through this contract will meet the applicable accessibility standards at 36 CFR 1194, unless an agency

exception to this requirement exists. 36 CFR 1194 implements Section 508 of the Rehabilitation Act of 1973. The Contractor will indicate for each line item in the schedule whether each product or service is compliant or noncompliant with the accessibility standards at 36 CFR 1194.

- The Contractor will indicate where full details of compliance can be found (e.g., vendor's website or other exact location).

5.3.7. The Contractor's courseware library and media elements must have at least a 95% capability to be viewed, tested, and completed on an iPad, iPhone, or Android device through a web browser. Any future developments to include use of mobile applications will be accessible to the DHA when available.

5.3.8. If services are provided remotely, the Contractor must adhere to all information technology requirements for utilizing Government equipment and accessing Government systems.

5.3.9. Capability and Administration:

- The Contractor will be responsible for obtaining authorization for system access rights to DHA member data while ensuring security of the data.
- The Contractor will obtain data transfer (interface) rights to provide course completion data directly to a DOD information system(s) on record. The Contractor will provide, as needed, scheduled data transfers (monthly, weekly, daily) to/from the DOD system. See Part 7, Technical Exhibit 1, A012

5.3.10. The Contractor will provide adequate bandwidth requirements to meet the demands of multiple simultaneous uses of the website without employees losing connectivity, being timed out, or excessively slowed down from completing educational requirements.

5.3.11. The Contractor will provide a system architecture that is extensible in that it easily adds new functions and features as they become available and conforms to industry standards to improve compatibility between the courseware and the platform.

5.3.12. The Contractor will co-host all data as content on a server farm in two (2) separate locations and backup all data off-site on a daily basis. The capability for backup operations can include utilization of a "cloud" architecture.

5.3.13. The Contractor shall provide a system architecture that allows student/volunteer data to be separated from employee data for training assignment and reporting purposes.

5.3.14. The Contractor will demonstrate its level of information assurance and security by attaining documentation detailing that the Contractor has established an appropriate level of security conforming to DOD standards including being FedRAMP compliant and establishing/maintaining an Authority to Operate (ATO).

5.4. Vendor Reporting:

5.4.1. Contractor will perform a needs assessment no later than sixty (60) calendar days after start of the period of performance to determine if additional courses are required by the DHA. See Part 7, Technical Exhibit 1 – CDRL A013

5.4.2. Customer Feedback:

- Any input/feedback received from DHA MTF participants will be reviewed quarterly by the COR. Results/recommendations will be used by the Contractor for programs and services improvement.
- Contractor is responsible to ensure that 95% of student surveys reflect a satisfaction rate not less than 70%; any deviations will be reviewed quarterly by the COR.
- Contractor will conduct ongoing informal needs assessments and one (1) annual formal needs assessment across the DHA to maintain accreditation and identify content areas for fifteen new courses every month. No fewer than four (4) quarterly informal needs assessments are required to validate existing CE/CME courses and identify new CE/CME requirements. Needs assessment reports will be provided to the COR fifteen (15) business days after completed.

See Part 7, Technical Exhibit 1 – CDRL A014

5.4.3. Vendor must provide ability for COR to generate standardized reports at any time. Access to data will be limited to site specific data for all site coordinators.

5.4.4. The Contractor will provide monthly, quarterly, and annual reporting to the COR.

- Reports detailing completion of courses include but not limited to: DHA MTF name, military specialty, discipline, organization, number of course(s) completed, and CE/CME hours granted.
- Included with the above reports will be a detailed Help Desk usage to include the number of calls received and the top five (5) most common issues.

See Part 7, Technical Exhibit 1 – CDRL A015

5.4.5. The Contractor will provide the following real-time reporting capability 24/7/365 to the COR and DHA MTF Site Coordinators:

- User Transcripts
- Course Completion Report (Summary) - Total # of completions
- Course Completion Report (Detailed) - By User

- Usage by CE Discipline
 - Usage by Site/Market
- Non Participation by Course
- Site Specific Course Evaluation
 - Test Validity
 - List of Participants by Site/Market
 - Not Assigned to a Group
 - Export CE/CME Transcript
 - Available CE Courses per Discipline
 - List of Participants by Service Category

See Part 7, Technical Exhibit 1 – CDRL A016

5.4.6. The Contractor will provide the following reports upon request by the COR and DHA MTF Site Coordinators:

- Safety Storm Assignment Compliance Report. See Part 7, Technical Exhibit 1 – CDRL A017
- Help Desk and Website Usage and Accessibility. See Part 7, Technical Exhibit 1 – CDRL A018
- Cost Analysis for CE Usage. See Part 7, Technical Exhibit 1 – CDRL A019
- CE Course Survey Results (scores and comments). See Part 7, Technical Exhibit 1 – CDRL A020

5.5. Administrative Support:

- 5.5.1. The Contractor will provide administrative support for setting up and supporting each DHA Network and MTF site.
- 5.5.2. The Contractor will provide an Internet-based orientation program for site coordinators. This program will be accessible 24/7/365 and will provide an overview of the available courseware and ensure that all departments and staff understand how to achieve maximum participation in the education programs. See Part 7, Technical Exhibit 1 – CDRL A021
- 5.5.3. The Contractor will create a user's guide for the general user and made available online.

- 5.5.4. The Contractor will distribute monthly email and marketing materials to DHA MTFs personnel detailing new courses and/or topics of interest. See Part 7, Technical Exhibit 1 – CDRL A022
- 5.5.5. Customer Service and Help Desk: The Contractor will maintain a 24/7/365 Customer Service and Help Desk support to site POCs, DHA MTF Administrators, and employees to support the courses and provide technical assistance and resolve problems. Contractor will receive no complaints of non-availability of help desk support. Hours of operation are discussed in PWS 1.7.3
- 5.5.6. Customer Service will be accessible through a Contractor provided toll-free number and email.
- 5.5.7. Within thirty (30) business days of contract award, the Contractor will interface data categories, formats, and data content of course and employee data to match those in use in the continuing data contained in Government-provided data sources. Upon completion of the period of performance, the Contractor will provide all current and historical data to the COR in formats CSV, XML, and pipe delimited electronic text file. Data will include, but not limited to, employee records; past or present. See Part 7, Technical Exhibit 1 – CDRL A023.

5.6. Other Requirements:

- 5.6.1. The Contractor will not share, release, exchange, sell, or transfer any employee data collected with any third party, Government agency, department, activity, or individual. This includes personal information gathered and kept on file. All work performed under this requirement shall be in accordance with PWS 6.0 Information Technology and Security.
- 5.6.2. Unless otherwise specified, all confidentiality of information to include financial, statistical, personnel, and/or furnished technical data, produced or otherwise available to the Contractor during the performance of this contract are considered confidential business information and belong to U.S. Government and will not be used for purposes other than performance of healthcare services under this contract. These files/results data will be surrendered to the COR within five (5) business days after the period of performance. The Contractor will not release any of the above information without prior written consent of the CO. See PWS 1.6.1.2, Transition-Out Period (See Part 7, Technical Exhibit 1 – CDRL A002)
- 5.6.3. The Contractor will provide program information support and materials to all DHA MTFs and other associated personnel eligible for support under this PWS. This will include, but not limited to, providing information about the program, information and assistance with registration and program access, information on available offerings, information about program functionality, Help Desk support, etc. The Contractor will provide no fewer than two (2) types of informational/marketing materials to the COR and site coordinators per year.

PART 6

6.0 INFORMATION TECHNOLOGY & SECURITY

6.1 All work under this contract is unclassified.

6.2 The TIER 1 or TIER 2 levels and position sensitivity designation for positions under this contract is: (Requirement must be checked in order to be a requirement for this PWS.)

6.2.1 TIER II: Non-critical sensitive position

6.3 Personally Identifiable Information (PII)/Protected Health Information (PHI), Procurement, and Federal information requirements: Refer to Clause Section, Attachments 1 and 2 of DHA Procedures, Guidance and Information 224.90, Personally Identifiable Information (PII), PHI), and Federal Information Requirement

6.3.1. Data Sharing Agreements (DSAs): Contractors requiring access to PII, which includes PHI, or access to de-identified data, are subject to the DHA Privacy and Civil Liberties Office (DPCLO) (Privacy Office) Data Sharing Program. This program requires DHA to enter into DSAs with parties outside the MHS who use or create MHS data. A DHA contract may use the term Data Use Agreement (DUA) rather than DSA. DSAs assure that outside parties protect MHS data in accordance with the Privacy Act and the HIPAA Rules. To apply for a DSA, the contractor submits a Data Sharing Agreement Application (DSAA) to the DHA DPCLO. The Contractor submits the DSAA even if a subcontractor will be the party accessing MHS data. After review and approval of the DSAA, the Privacy Office provides a DSA to the Contractor for execution.

6.3.2. Processing Procurement Sensitive Information: All individuals shall seek guidance from the CO regarding the coordination of documents, dissemination, and transmission of procurement sensitive information. Procurement sensitive information shall not be transmitted electronically unless encryption is utilized. Depending on a particular procurement, other restrictions may apply.

6.4 Training

Not applicable.

6.5 Cybersecurity Requirements for Non-DoD IT or Covered Contractor IS:

6.5.1 The Contractor shall, at time of award, have implemented the security requirements prescribed in the National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171, "Protecting Controlled Unclassified Information in Nonfederal Information Systems and Organizations" (available via the internet at <http://dx.doi.org/10.6028/NIST.SP.800-171>), in accordance with DFARS clause 252.204-7012.

6.5.2 NIST SP 800-171 DoD Assessment Methodology. The DFARS provision 252.204-7019 introduces the "NIST SP 800-171 DoD Assessment Methodology" requirement. This

requirement enables a strategic assessment of a Contractor's implementation of the NIST SP 800-171 requirements as required in DFARS clause 252.204-7012. The DoD Assessment Methodology requirement flows down to subcontractors.

6.5.2.1 Basic Assessment: The contractor shall obtain and maintain access to the Supplier Performance Risk System (SPRS) via the PIEEE, (available via the internet at <https://www.sprs.csd.disa.mil/>)

6.5.2.1.1 The Contractor shall perform a Basic Assessment, using the NIST SP 800-171 DoD Assessment Scoring Template, and enter the results electronically in SPRS for each covered contractor information system that is relevant to an offer, contract, task order, or delivery order. See Part 7, Technical Exhibit 1 – CDRL A024.

6.5.2.1.2 The Contractor shall ensure that applicable subcontractors also have their results of a current assessment posted in SPRS prior to awarding a subcontract or other contractual instrument in accordance with DFARS clause 252.204-7020.

6.5.3 The Contractor shall provide the Government with access to its facilities, systems, and personnel when necessary to conduct or renew a higher-level (i.e., Medium or High) assessment in accordance with DFARS clause 252.204-7020.

6.5.4 Cybersecurity Maturity Model Certification (CMMC) (*When applicable*): The CMMC (DFARS clause 252.204-7021) builds upon the NIST SP 800-171 DoD Assessment Methodology by adding a comprehensive and scalable certification element to verify the implementation of processes and practices associated with the achievement of a cybersecurity maturity level. The CMMC is designed to increase assurance to the DoD that federal contract information (FCI) and DoD Controlled Unclassified Information (CUI) is protected at a level commensurate with the risk. The CMMC requirement flows down to subcontractors.

6.5.4.1 The Contractor shall have a current (i.e., not more than three years old) CMMC certificate in SPRS issued by an accredited CMMC Third Party Assessment Organization (3PAO) at the required CMMC level. The description of CMMC levels is available at <https://www.cmmcab.org/>.

6.5.5 The Contractor shall submit requests to vary from NIST SP 800-171 in writing to the CO or COR, for consideration by the DoD Chief Information Officer (CIO). The Contractor need not implement any security requirement adjudicated by an authorized representative of the DoD CIO to be non-applicable or to have an alternative, but equally effective, security measure that may be implemented in its place.

6.5.6 If the DoD CIO has previously adjudicated the Contractor's requests indicating that a requirement is not applicable or that an alternative security measure is equally effective, a copy of that approval shall be provided to the CO or COR when requesting its recognition under this contract.

6.5.7 Cloud Computing: If the Contractor intends to use an external cloud service provider, on their behalf, to store, process, or transmit any DoD CUI in performance of this contract, the Contractor shall require the cloud service provider meets security requirements equivalent to those established by the Government for the Federal Risk and Authorization Management Program (FedRAMP) Moderate baseline (<https://www.fedramp.gov/>) and that the cloud service provider complies with requirements in paragraphs 6.5.8 through 6.5.14 for cyber incident reporting, malicious software, media preservation and protection, access to additional information and equipment necessary for forensic analysis, and cyber incident damage assessment.

6.5.7.1 If the information is DoD CUI-specific (e.g., PII/PHI), then the Contractor shall ensure the external cloud service provider meet the security requirements equivalent to FedRAMP High baseline.

6.5.8 Cyber Incident Reporting Requirement:

6.5.8.1 When the Contractor discovers a cyber incident that affects a covered Contractor information system or the covered defense information residing therein, or that affects the Contractor's ability to perform the requirements of the contract that are designated as operationally critical support and identified in the contract, the Contractor shall:

6.5.8.1.1 Conduct a review for evidence of compromise of covered defense information, including, but not limited to, identifying compromised computers, servers, specific data, and user accounts. This review shall also include analyzing covered Contractor information system(s) that were part of the cyber incident, as well as other IS on the Contractor's network(s), that may have been accessed as a result of the incident in order to identify compromised covered defense information, or that affect the Contractor's ability to provide operationally critical support.

6.5.8.1.2 In accordance with DFARS clause 252.204-7012, rapidly report (within 72 hours) cyber incidents involving DoD CUI to DoD Cyber Crime Center (DC3) via <https://dibnet.dod.mil/portal/intranet/>. In the event of a cybersecurity incident involving a CUI-Specific breach (i.e., PII/PHI), the Contractor, in addition to reporting to the DC3, shall follow the incident reporting guidance prescribed in the TRICARE Operations Manual, Chapter 1, Section 5, "Compliance with Federal Statutes" at <https://manuals.health.mil/>.

6.5.8.2 Cyber incident report: The cyber incident report shall be treated as information created by or for DoD and shall include, at a minimum, the required elements as prescribed at the <https://dibnet.dod.mil/portal/intranet/>.

6.5.8.3 Medium assurance certificate requirement: In order to report cyber incidents in accordance with this clause, the Contractor or subcontractor shall have or acquire a DoD-approved medium assurance certificate to report cyber incidents. For information on obtaining a DoD-approved medium assurance certificate, see <https://public.cyber.mil/>.

6.5.9 Malicious software: When the Contractor or subcontractors discover and isolate malicious software in connection with a reported cyber incident, submit the malicious software to DC3 in

accordance with instructions provided by DC3 or the Contracting Officer. Do not send the malicious software to the Contracting Officer.

6.5.10 Media preservation and protection: When a Contractor discovers a cyber incident has occurred, the Contractor shall preserve and protect images of all known affected IS and all relevant monitoring/packet capture data for at least 90 days from the submission of the cyber incident report to allow DoD to request the media or decline interest.

6.5.11 Access to additional information or equipment necessary for forensic analysis: Upon request by DoD, the Contractor shall provide DoD with access to additional information or equipment that is necessary to conduct a forensic analysis.

6.5.12 Cyber incident damage assessment activities: If DoD elects to conduct a damage assessment, the CO will request that the Contractor provide all of the damage assessment information gathered in accordance with paragraph (e) of DFARS clause 252.204-7012.

6.5.13 Apply other IS security measures when the Contractor reasonably determines that IS security measures may be required to provide adequate security in a dynamic environment or to accommodate special circumstances (e.g., HIPAA) and any individual, isolated, or temporary deficiencies based on an assessed risk or vulnerability. These measures may be addressed in a system security plan.

6.5.14 The Contractor shall maintain within the US or US territories all Government data that is not physically located on DoD premises, unless the Contractor receives written notification from the CO to use another location, in accordance with DFARS 239.7602-2(a).

6.5.15. The Contractor shall mitigate supply chain risk to the Government by complying with DFARS 252.239-7018 and only utilizing unified capability equipment identified on the DODIN Unified Capabilities Approved Products List (APL) (<https://aplits.disa.mil/processAPList>), unless granted a waiver in accordance with DODI 8100.04, DOD Unified Capabilities (UC).

6.6 Risk Management Framework (RMF) for DoD IT: Reserved.

6.7. Facility Related Control Systems: Reserved.

6.8. System Communications: Reserved.

6.9 MHS Demilitarized Zone (DMZ) Medical Community of Interest (MedCOI) Business-to-Business (B2B) Gateway:

6.9.1 If there is an external system connection to a DoD IS required, then the Contractor shall, in accordance with contract requirements, connect to the DHA B2B Gateway via a Contractor procured Internet Service Provider (ISP) connection.

6.9.2 The Contractor shall assume all responsibilities for establishing and maintaining their connectivity to the B2B Gateway. This shall include acquiring and maintaining the circuit used

to connect to the B2B Gateway and the acquisition of a Virtual Private Network (VPN) device maintenance agreement and license compatible with the MHS VPN device. The list of compatible devices are detailed in the DHA B2B/MedCOI Gateway questionnaire.

6.9.3 The Contractor shall submit a completed current version of the DHA B2B Gateway questionnaire to their Contracting Officer or COR within 10 calendar days after new requirements have been provided to the Contractor.

6.9.4 The Contractor shall provide information specific to their connectivity requirements, proposed path for the connection and last mile diagram.

6.10 Contractor Provided IT Infrastructure:

6.10.1 Platforms shall support HyperText Transfer (Transport) Protocol (HTTP), HyperText Transfer (Transport) Protocol Secure (HTTPS), web-derived Java Applets, and Secure File Transfer Protocols (SFTPs) (e.g., STFP, Secure Socket Layer/Transport Layer Security), and all software that the Contractor proposes to use to interconnect with DoD facilities.

6.10.2 The Contractor shall configure their networks to support access to Government systems (e.g., configure ports and protocols for access).

6.10.3 The Contractor shall provide full time connections to a TIER 1 or TIER 2 ISP. Dial-up ISP connections are not acceptable. All IP addresses need to be publicly routable. Private address space using Network Address Translation will not be permitted.

6.10.4 The Contractor shall maintain a valid maintenance contract and pertinent licenses for all devices connecting to the MHS B2B Gateway.

6.11 System Authorization Access Request (SAAR), Defense Department (DD) Form 2875:

6.11.1 The Contractor shall submit the most current version of DD Form 2875, "System Authorization Access Request (SAAR), in accordance with CO guidance for all Contractors that use the DoD Gateways to access Government IT systems and/or DoD applications shall. A DD Form 2875 shall be completed for each Contractor employee who will access any system and/or application on a DoD network. The DD Form 2875 shall clearly specify the system and/or application name and justification for access to that system and/or application.

6.11.2 The Contractor shall submit the completed DD Form 2875 to the DHA IT Security for verification of Tier I or Tier II Designation. The DHA Personnel Security will verify that the Contractor employee has the appropriate background investigation completed or a request for background investigation has been submitted to the Office of Personal Management (OPM). Acknowledgment from OPM that the request for a background investigation has been received and that an investigation has been scheduled will be verified by the DHA Personnel Security prior to access being approved.

6.11.3 Upon approval, DHA will notify the user of the ID and password via secure/encrypted e-mail upon the establishment of a user account. User accounts will be established for individual use and may not be shared by multiple users or for system generated access to any DoD application. Misuse of user accounts by individuals or Contractor entities will result in termination of system access for the individual user account.

6.11.4 The Contractor shall conduct a monthly review of all Contractor employees who have been granted access to DoD IS'/networks to verify that continued access is required.

6.11.5 The Contractor shall provide the DHA DPCLO with a report of the findings of their review by the 10th day of each month following the review. Reports identifying changes to Contractor employee access requirements shall include the name, DoD ID number from CAC, Company, IS/network for which access is no longer required and the date access will be terminated.

6.12 MHS Systems Telecommunications:

6.12.1 The primary communication links shall be via encrypted tunnels (i.e., Secure Internet Protocol (IPSEC), GetVPN, or Secure Socket Layer) between the Contractor's primary site and the MHS B2B Gateway.

6.12.2 The Contractor shall place the VPN appliance device outside the Contractor's firewalls and shall allow full management access to this device (e.g., in router access control lists) to allow Central VPN Management services provided by DHA or other source of service as designated by the MHS to remotely manage, configure, and support this VPN device as part of the MHS VPN domain.

6.12.3 The Contractor shall procure and configure for operation an auxiliary VPN device for backup purposes to minimize any downtime associated with problems of the primary VPN.

6.12.4 The Contractor shall send devices to the MHS VPN management authority (e.g., DHA) via postage paid and include prepaid return shipping arrangements for the device(s).

6.12.5 The MHS VPN management authority (e.g., DHA) will remotely configure and manage the VPN appliance once installed by the Contractor.

6.12.6 The Contractor shall be responsible for the maintenance and repair of Contractor procured VPN equipment.

6.12.7 The Government will be responsible for the troubleshooting of VPN equipment.

6.13 Establishment of Telecommunications:

6.13.1 Telecommunications shall be established with the MHS through coordination with DHA.

6.13.2 The Contractor and DHA Program Office shall identify their requirement(s) for the establishment of telecommunications with the MHS and/or other Government entities.

6.13.3 The DHA/MedCOI B2B Gateway Questionnaire (provided by DHA) identifies the required telecommunication infrastructure between the Contractor and the MHS systems. This includes all Wide Area Network, Local Area Network, VPN, Web DMZ, and B2B Gateway access requirements.

6.13.4 The Contractor shall complete their applicable portion of the questionnaire and shall return it to the DHA designated POC for review and approval.

6.13.5 The Contractor shall, Upon Government request, provide technical experts to provide any clarification of information provided in the questionnaire. DHA will review and process the questionnaire when it is accepted.

6.13.6 DHA will coordinate any requirements for additional information with the POC and schedule any meetings required to review the Questionnaire. Upon approval of the Questionnaire, DHA will coordinate a testing meeting with appropriate stakeholders.

6.13.7 DHA will notify the contractor POC of the meeting schedule. The purpose of the testing meeting is to complete a final review of the telecommunication requirements and establish testing dates.

6.14 Contractors Located On Military Installations:

6.14.1 The Contractor(s) shall coordinate/obtain the connections with the local MTFs/ Enhanced Multi-Service Markets (eMSMs) and Base/Post/Camp communication personnel located on a military installation who require direct access to Government systems.

6.14.2 These connections will be furnished by the Government.

6.14.3 Contractors located on military installations that require direct connections to their networks shall provide an isolated IT infrastructure. They shall coordinate with the Base/Post/Camp communications personnel and the MTF/eMSM in order to get approval for a Contractor procured circuit prior to installation to ensure the Contractor is within compliance with the respective organizational security policies, guidance and protocols.

Note: In some cases, the Contractor may not be allowed to establish these connections due to local administrative/security requirements.

6.14.4 The Contractor shall be responsible for all security certification documentation as required to support DoD IA requirements for network interconnections.

6.14.5 The Contractor shall provide, on request, detailed network configuration diagrams to support IA accreditation requirements.

6.14.6 The Contractor shall comply with IA accreditation requirements. All network traffic shall be via Transmission Control Protocol/Internet Protocol using ports and protocols in accordance with current Service security policy. All traffic that traverses MHS and/or military Service Base/Post/Camp security infrastructure is subject to monitoring by security staff using Intrusion Detection Systems.



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PART 7
7.0 ATTACHMENTS/TECHNICAL EXHIBIT LISTING

7.1 The following forms are to be completed by the FSO/Security POC, or COR once the contractor is granted the proper background investigation.

7.1.1 Contractor CAC Request Process.



DHA CAC Request
Process.pdf



DMDC TASS
Application.xlsx

PART 7, ATTACHMENT 1 PERFORMANCE REQUIREMENTS SUMMARY

The Contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success.

Performance Objective (The Service required—usually a shall statement from Part 5)	PWS Reference	Acceptable Quality Level (AQL) (This is the maximum error rate. It could possibly be “Zero deviation from standard”)	Method of Surveillance
Performance Requirements Summary (PRS) # 1. Contractor will limit the amount of time the system is down for maintenance.	PWS Part 5, Section 5.3.1	Contractor will limit the amount of time the system is down for maintenance. Not more than 48 hours in any three (3) month period	Direct observation and analysis of Contractor reports.
PRS # 2 Customer Feedback: Any input/feedback received from DHA MTF participants will be reviewed quarterly by the COR.	PWS Part 5, Section 5.4.2	Results/recommendations will be used by the Contractor for programs and services improvement. 95% of students surveys reflect a satisfaction rate not less than 70%	Direct observation and analysis of final products.
PRS # 3 Customer Service and Help Desk: The Contractor will maintain a 24/7/365 Customer Service and Help Desk support to site POCs, DHA MTF Administrators and employees to support the courses and provide technical assistance and resolve problems.	PWS Part 5, Section 1.7.3, 5.5.5, and 5.5.6	Contractor will receive no complaints of non-availability of help desk support. Except in unforeseen situations, support will be available no less than 28 days per month.	Analysis of Contractor reports.

PRS # 4 Unless unforeseen system failure occurs, the Contractor will notify DHA MTFs of any required or scheduled system maintenance.	PWS Part 5, Section 5.3.3	48-hour minimum notice. System will be available at all times except during required scheduled maintenance (48 hours minimum notice).	Direct observation and analysis of Contractor reports.
PRS # 5 The Contractor will provide the data to the COR that was used to create the reports upon request.	PWS Part 5, Section 5.4.6	The data will be submitted using Microsoft Excel and will include the Sequel (SQL) query that generated the data. The Government reserves the right to provide the Contractor with final approval of all reports prior to acceptance. Generating report capability will be available 24/7/365	Direct observation and analysis of Contractor reports.
PRS # 6 Self-Generated Reports	PWS Part 5, Section 5.4.3	The COR and DHA MTF Site Coordinators can generate standardized reports at any time. Generating report capability will be available 24/7/365	Direct observation.

7.1.1. Service Summary

Performance Requirements	PWS Para #	Performance Threshold/Standard
Down for maintenance	5.3.1	Not more than 48 hours in any three (3) month period
Survey training participant expectations	5.4.2	95% of students surveys reflect a satisfaction rate not less than 70%

Development of requested courseware	5.1.8	The Government may provide up to 10 new DHA healthcare training requirements for development into DL courseware per year to be hosted on the Contractor's website.
Legacy Training Courses	5.1.8	The Contractor will continue to host legacy medical readiness training courses through the end of the base year of the contract.
System will be available online 24/7/365	1.7.3.1, and 5.2.2	System will be available at all times except during required scheduled maintenance (48 hours minimum notice)
Customer Service and Help Desk maintained 24/7/365	5.5.5	Customer Service and Help Desk maintained 24/7/365
COR and DHA MTF Site Coordinators can generate reports at any time	5.4.5	Generating report capability will be available 24/7/365

7.2 Other Attachments

7.2.1 Cybersecurity Regulations and Guidance (Paragraph 6.7.2.3)



Attachment
3-Cybersecurity Regu

7.2.2 Certifying Boards



Certifying
Boards.xlsx

7.2.3 DHA Content Library



DHA Content
Library.xlsx

PART 7, TECHNICAL EXHIBIT 1
DELIVERABLES SCHEDULE

Abbreviation	Definition
COR	Contracting Officer's Representative
DA	Days after
DACA	Days after contract award (award of this order)
DAEOM	Days after the end of the month
Days	Calendar Days unless otherwise specified
E	Electronic Copy
H	Hard Copy
KO	Contracting Officer
NLT	Not Later Than
PWS Ref	Performance Work Statement (paragraph number)
SPM	Project Manager

<u>Deliverable</u>	<u>Frequency</u>	<u>Medium/Format</u>	<u>Submit To</u>	<u>Applicable to:</u>
CDRL A001 Transition Support: Incoming Transition Plan	Submit with proposal	E	KO	See PWS 1.6.1.1
CDRL A002 Transition Support: Outgoing Transition Plan	6-months prior to close of contract or unexercised option.	E	COR	See PWS 1.6.1.2
CDRL A003 Quality Control Plan  CDRL 1 Quality Plan	Within 30 DACA	Contractors discretion	COR	All, See PWS 1.10.1
CDRL A004 Non-Disclosure Agreement	Signed statements are due, from each employee assigned, prior to performing ANY work on this task.	E	COR	See PWS 1.14.2

<u>Deliverable</u>	<u>Frequency</u>	<u>Medium/Format</u>	<u>Submit To</u>	<u>Applicable to:</u>
CDRL A005 Listing of courses with the matching standards and regulations or regulatory guidance	Quarterly	E	COR	See PWS 5.1.3
CDRL A006 SCORM Packages	As Required	E	COR	See PWS 5.1.3
CDRL A007 Source Code	Upon completion.	E	COR	See PWS 5.1.8
CDRL A008 Registration support, Printable instructor lesson plans/Instructor guides, and Group discussion exams	Within 15 business days of request	E	COR	See PWS 5.1.9
CDRL A009 Program Syllabus/training documentation	Upon Request	E	COR	See PWS 5.1.10
CDRL A010 MTF/DTF Personnel Certifications	As Required	E	Certifying Boards	See PWS 5.1.13
CDRL A011 MTF/DTF Facilities Accreditation	As Required	E	Certifying Boards	See PWS 5.1.14
CDRL A012 Data Transfers	Daily, Weekly, Monthly	E	COR	See PWS 5.3.9
CDRL A013 Vendor Reporting/Needs Assessment	NLT 60 calendar days after start of the period of performance	E	COR	See PWS 5.4.1

<u>Deliverable</u>	<u>Frequency</u>	<u>Medium/Format</u>	<u>Submit To</u>	<u>Applicable to:</u>
CDRL A014 Customer Feedback/Needs Assessment	No fewer than 4 quarterly; NLT fifteen (15) business days after completed	E	COR	See PWS 5.4.2
CDRL A015 Monthly, Quarterly, and Annual Reporting	Upon Request	E	COR	See PWS 5.4.4
CDRL A016 Real-time reporting capability	24/7/365	E	COR	See PWS 5.4.5
CDRL A017 Safety Storm Assignment Compliance Report	Upon Request	E	COR	See PWS 5.4.6
CDRL A018 Help Desk and Website Usage and Accessibility Report	Upon Request	E	COR	See PWS 5.4.6
CDRL A019 Cost Analysis for CE Usage Report	Upon Request	E	COR	See PWS 5.4.6
CDRL A020 CE Course Survey Results Report	Upon Request	E	COR	See PWS 5.4.6
CDRL A021 Orientation Program	24/7/365	Powerpoint, Word, PDF, Video, etc.-	COR	See PWS 5.5.2
CDRL A022	Monthly	Email/Paper advertisement	COR	See PWS 5.5.4

<u>Deliverable</u>	<u>Frequency</u>	<u>Medium/Format</u>	<u>Submit To</u>	<u>Applicable to:</u>
Administrative Support/Monthly Email				
CDRL A023 Interface Matching	Within 30 DACA and upon completion of the period of performance	CSV, XML, and pipe delimited electronic text file	COR	5.5.7
CDRL A024 Basic NIST Scoring Assessment	Withing 60 DACA and annually thereafter	PIEE/SPRS	COR	6.5.2.1.1